



CHAPTER xlv.

An Act to enable the Aberdare Urban District Council to make and maintain street improvements and for other purposes. A.D. 1905.
[30th June 1905.]

WHEREAS the district of Aberdare in the county of Glamorgan is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Aberdare Urban District Council (in this Act called "the Council"):

And whereas it is expedient and would be for the public convenience that the Council should be authorised to make and execute the new streets and street widenings in this Act mentioned and to construct a public footpath over part of the churchyard of St. John's Church Aberdare:

And whereas by the Aberdare Electric Lighting Order 1902 confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1902 the Council were empowered to produce and supply electrical energy within the district for public and private purposes and it is expedient to make further provision with regard to the supply of electrical energy by the Council:

And whereas it is expedient that the Council should be empowered to borrow money for the purposes mentioned in this Act:

And whereas it is expedient that the further powers in this Act contained should be conferred upon the Council:

And whereas estimates have been prepared by the Council for the purposes herein-after mentioned and such estimates are as follows:—

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For the purchase of land for and in connexion
with the construction of the new streets and
street widenings by this Act authorised - 12,396

For the purchase of land for and in connexion
with the construction of the refuse destructor
and plant for making bricks and slabs from
clinker refuse by this Act authorised - 14,300

And whereas the several works included in such estimates
respectively are permanent works and it is expedient that the
cost thereof should be spread over a term of years:

And whereas the objects of this Act cannot be effected
without the authority of Parliament:

And whereas an absolute majority of the whole number of
the Council at a meeting held on the eighth day of August
one thousand nine hundred and four after ten clear days' notice
by public advertisement of the meeting and of the purposes
thereof in the South Wales Echo a local newspaper published
and circulating in the district such notice being in addition to
the ordinary notice required for summoning the meeting resolved
that the expenses in relation to the promotion of the Bill for
this Act should be charged on the district fund and general
district rate or be paid out of moneys to be borrowed under
this Act:

And whereas that resolution was published twice in the
Western Mail being a local newspaper published and circu-
lating in the district and has received the approval of the Local
Government Board:

And whereas the propriety of the promotion of the Bill
as introduced into Parliament for this Act was confirmed by
an absolute majority of the whole number of the Council at a
further special meeting held in pursuance of a similar notice
on the second day of January one thousand nine hundred and
five being not less than fourteen days after the deposit of the
Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this
Act the requirements contained in the First Schedule of the
Borough Funds Act 1903 have been observed:

And whereas plans and sections showing the lines and levels
of the works authorised by this Act and the lands in or through
which the same are intended to be made and plans of the lands

which are authorised to be acquired under the powers of this Act A.D. 1905.
and a book of reference to such plans containing the names
of the owners and lessees or reputed owners and lessees and
of the occupiers of the said lands have been duly deposited
with the clerk of the peace for the county of Glamorgan
and those plans sections and book of reference are in this Act
respectively referred to as the deposited plans sections and book
of reference :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by
and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Aberdare Urban District Short title.
Council Act 1905.

2. The following Acts and parts of Acts so far as the Incorporation of Acts.
same are applicable to the purposes of and are not varied by
or inconsistent with this Act are incorporated with and form
part of this Act :—

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845).

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorpo-
rated herewith have the same respective meanings unless there
be something in the subject or context repugnant to such
construction And in this Act unless the context otherwise
requires—

“The district” means the urban district of Aberdare in the
county of Glamorgan ;

“The Council” means the urban district council of the
district ;

“Statutory security” means any security in which trustees
are for the time being by or under any Act of Parlia-
ment passed or to be passed authorised to invest trust
money and any mortgage bond debenture debenture

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—

stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

The several words and expressions to which meanings are assigned in enactments incorporated with this Act or in the Public Health Acts or which have therein special meanings have in this Act (except where otherwise expressly provided) the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART II.

STREET WORKS.

Power to
widen cer-
tain streets.

4. The Council may subject to the provisions of this Act and within the limits shown on the deposited plans construct the new streets and widen and improve the streets or parts of streets herein-after described (namely):—

A new road (No. 1) commencing in Cardiff Road at a point 186 yards or thereabouts measured in a southerly direction from the south-east corner of Clarence Street and terminating by a junction with Cardiff Road at a point 44 yards or thereabouts measured in a south-easterly direction from the south corner of Bell Place:

A new road (No. 2) commencing at the south-west end of Gooseberry Hill at a point 120 yards or thereabouts measured in a south-westerly direction from the east corner of Fforchneol Arms and terminating by a junction with Fair View Terrace at its north-east end:

A new road (No. 3) commencing at the south-west end of Fair View Terrace at a point two yards or thereabouts measured in a south-westerly direction from the south-west corner of Fair View Terrace and terminating by a junction with Fforchaman Road at a point 46 yards or thereabouts measured in a north-easterly direction from the south-west corner of Cwmneol Inn:

Widening No. 1 A widening of the south side of Gadlys Road between points 0·1 chains and 2·5 chains south-eastward of the south-east corner of No. 100 Gadlys Road: A.D. 1905.

Widening No. 1A A widening on the south side of Gadlys Road between points 3·5 chains and 4·1 chains south-eastward of the south-east corner of No. 100 Gadlys Road including the widening of the Gadlys Bridge over the Taff Vale Railway:

Widening No. 2 A widening on the south side of Gadlys Road commencing by the Taff Vale Bridge Pier and the west side of High Street (through St. John's Churchyard) and terminating by the north-east corner of No. 28 High Street:

Widening No. 3 A widening on the south-west side of Cardiff Road (the Mardy Grounds) from its junction with Bethuel Street to a point 0·4 chains north-westward of the north-west side of the Victoria Inn:

Widening No. 4 A widening on the west side of Cardiff Road between points 0·2 chains and 2·3 chains or thereabouts south-east of the east corner of the Victoria Inn:

Widening No. 5 A widening on the east side of Cardiff Road between points 0·5 chains and 5·5 chains or thereabouts north of the south-west corner of No. 18 Cardiff Road:

Widening No. 6 A widening on the north-east side of Cardiff Road between points 0·2 chains and 3·1 chains south-eastward of the south corner of No. 28 Cardiff Road:

Widening No. 7 A widening on the south side of Cardiff Road between points 3·2 chains and 5·1 chains or thereabouts east of the intersection of the said road with Sunnybank Street:

Widening No. 8 A widening on the east side of Cardiff Road between points 0·4 chains and 3·1 chains north of the intersection of the said road with Ynyslwyd Road:

Widening No. 9 A widening on the south-west side of Cardiff Road from its junction with Mount Street to a point 4·0 chains or thereabouts south-eastward of the said street:

Widening No. 10 A widening on both sides of Cardiff Road between Mount Hill Street and Mason Street:

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Widening No. 11 A widening on the west side of Cardiff Road and north side of Clarence Street between points 1·5 chains or thereabouts south of the south-east corner of the boundary wall of Aberaman School and 0·6 chains from the intersection of Clarence Street with Cardiff Road:

Widening No. 12 A widening on the south side of Clarence Street and south-east side of Jubilee Road between points 1·6 chains or thereabouts east of the east corner of Bethany Congregational Chapel and 0·3 chains or thereabouts south-westward of the east corner of the said chapel:

Widening No. 13 A widening on the south-east side of Gooseberry Hill between points 3·6 chains or thereabouts and 9·2 chains or thereabouts south-westward of Cwmaman Road.

Limits of
lateral and
vertical
deviation for
street works.

5. Subject to the provisions of this Part of this Act and to section 308 of the Public Health Act 1875 the Council in the construction of the street works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from the limits shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Power to
make subsi-
diary works.

6. Subject to the provisions of this Act and within the limits defined on the deposited plans the Council in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or contiguous to the said street works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter divert or stop up any drain or sewer shown on the deposited plans the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 of the Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

7. The Council may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Council and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

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Power to
alter steps
areas and
pipes.

8. The Council may construct a public footpath upon and along the north side of the churchyard of St. John's Church within the limits of deviation shown on the deposited plans and may for that purpose remove the grave and head stones and level the ground Provided that there shall be no interference with human remains and all grave and head stones so removed shall be replaced as the bishop of the diocese shall direct at the side of the public footpath so to be constructed and provided also that the existing or a similar boundary fence shall be erected and maintained by the Council between the footpath and high road and that a like boundary fence shall be erected and maintained at the expense of the Council between the footpath and the churchyard and that the means of access to and exit from the said churchyard shall be continued as heretofore the necessary gates being erected and maintained by and at the expense of the Council And it is hereby expressly provided that the Council shall not use the portion of the churchyard so acquired by them for any other purpose than that of a footway.

Footpath
along St.
John's
churchyard.

9. All lands which shall be laid into and appropriated for streets in pursuance of the provisions of this Part of this Act or upon which any new roads road widenings footpaths or other works shall be constructed under the powers of this Part of this Act shall after such laying into appropriation or construction for ever form part of the public streets and shall be maintained and kept in repair under the same conditions as those under which the public streets generally within the district are for the time being by law maintained and kept in repair.

Lands on
which street
works are
constructed
to be part of
public
streets.

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PART III.

REFUSE DESTROYER.

Lands for
refuse de-
stroyer.

10. The Council may subject to the provisions of this Act appropriate and use the lands described in the Second Schedule to this Act for the purpose of erecting and maintaining a refuse destructor thereon and other buildings connected therewith or subsidiary thereto with all proper machinery and appliances necessary for the proper working of the same and may construct and maintain upon such lands a refuse destructor and may provide thereon plant apparatus and works for any of the purposes of this Part of this Act.

Power to
manufacture
slabs &c.
from destruc-
tor refuse.

11. The Council may convert any clinkers or other refuse or surplus material or product arising in connexion with their refuse destructor into slabs of artificial stone bricks concrete mortar and other materials and for that purpose may upon any lands acquired by them for the purposes of this Part of this Act or subject to the sanction of the Local Government Board and to such conditions as that Board may prescribe upon any lands for the time being vested in them and available for the purpose construct such buildings and works and may in connexion therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Council for repairing streets or for any other purposes connected with the work of the Council for which they may be suitable or may be sold by the Council and in that event they shall carry the proceeds arising from any sales thereof to the credit of the district fund.

PART IV.

ELECTRICITY.

Power to
supply elec-
tric fittings.

12.—(1) The Council may within the district provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines fuses switches fittings lamp-holders motors and other apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or

proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fuses switches fittings lamp-holders motors and other apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed. A.D. 1905.
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(2) Any expenses incurred by the Council in carrying into effect the provisions of this Part of this Act shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

(3) Any moneys received by the Council under this Part of this Act shall be applied in the same manner as they would be if they were moneys received under the Aberdare Electric Lighting Order 1902.

(4) No electric line fuse switch fitting meter lamp lamp-holder motor apparatus or thing let for hire by the Council under the provisions of this section shall be subject to distress or to the landlord's remedy for rent or to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such electric line fuse switch fitting meter lamp lamp-holder motor apparatus or thing is marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

13. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first

Altering date
for filling
up annual
accounts
for electric
lighting.

A.D. 1905. day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Discount
on electric
lighting
and power
accounts.

14. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Council shall make the same allowance to all consumers under similar circumstances.

Council
may refuse
to supply
electrical
energy in
certain
cases.

15. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises.

Electricity
consumers to
give notice
to Council
before re-
moving.

16. Twenty-four hours' notice in writing shall be given to the Council by every electricity consumer before he shall quit any premises supplied with electric current by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply electric current to such premises whichever shall first occur. Provided that notice of the effect of this enactment shall be endorsed on every demand note for rent for current.

Supply of
electricity
where con-
sumer has
separate
supply.

17. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Council such minimum annual sum as will give to the Council a reasonable return on the capital expenditure and other standing charges incurred by the Council to meet the possible maximum demand of such person. In case the Council and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

18. If the local authority for any district adjacent to the area which the Council are for the time being authorised to supply with electrical energy are or shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply energy or if any company are so authorised to supply energy within any such district the Council and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Council to such authority or company Provided that such supply shall not be given if and so long as such supply would interfere with the supply of electricity within the district.

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Supply of
electrical
energy out-
side district.

PART V.

LANDS.

19. The Council may subject to the provisions of this Act enter upon take and use all or any of the lands within the limits of deviation shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act or in connexion therewith.

Power to
take lands.

20. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

21. In estimating the amount of compensation or purchase money to be paid by the Council under this Part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of any street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Assessment
of compen-
sation.

22. If any omission misstatement or wrong description is found to have been made of any lands or of any owners lessees or occupiers of any lands shown or described or intended to be shown or described on the deposited plans or in the deposited book of reference the Council may apply to two justices for the correction thereof after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction If it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or wrong description and such certificate

Correction of
errors &c. in
deposited
plans and
book of
reference.

A.D. 1905. shall be deposited with the clerk of the peace for the county of Glamorgan. The certificate shall be kept by the clerk of the peace with the other documents to which it relates and subject to and according to the same enactments and provisions as applied to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Council may enter on take hold and use those lands accordingly.

Owners may be required to sell parts only of certain lands and buildings.

23.—(1) And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:---

- (A) The owners of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":
- (B) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (C) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section

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referred to as "the tribunal") shall in addition to the other questions required to be determined by them determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :

- (D) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (E) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (F) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (G) If the tribunal determine that the portion of the scheduled property specified in the notice to treat

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—

cannot be severed from the remainder without material detriment thereto but that any other such portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Persons
under dis-
ability may
grant ease-
ments &c.

24. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
retain sell
&c. lands.

25. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents

reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

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26. The Council may with the consent of the Local Government Board and subject to such conditions as that Board may prescribe appropriate and use for any of the purposes of this Act or any other Acts any lands for the time being vested in them as an urban district council or otherwise and not required for the purposes for which the same were acquired but nothing in this section shall authorise the Council to create or permit any nuisance thereon. If the Council so appropriate any lands they shall charge the account for which the said lands are appropriated with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

Council may
use lands.

27. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing as aforesaid in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board. Provided that the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands. Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Proceeds of
sale of sur-
plus lands.

28. The Council may make and carry into effect agreements with any company body or person with regard to the manner in which the street widenings shall be constructed or with regard to the accommodation works the levelling and filling up of the land

Agreements
with land-
owners.

A.D. 1905. — fronting on the widened streets or any other matters connected with the construction of the same or the purchase of lands for the purposes of this Act.

PART VI.

FINANCIAL PROVISIONS.

Power to
borrow.

29. The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say):—

- (1) For the purchase of the lands for and the construction of new streets street widenings and footpath by this Act authorised the sum of twelve thousand three hundred and ninety-six pounds:
- (2) For the purchase of lands for and the construction of a refuse destructor by this Act authorised the sum of nine thousand eight hundred pounds:
- (3) For the purchase of lands for and the construction of plant for making bricks and slabs from clinker refuse four thousand five hundred pounds:
- (4) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose.

In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the general district fund and general district rate.

Certain
regulations
of Public
Health Act
as to bor-
rowing not
to apply.

30. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Provisions
as to mort-
gages.

31. The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act.

32. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

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Protection
of lenders
from in-
quiry.

33. All moneys borrowed by the Council under the authority of this Act shall be paid off by the Council within the periods herein-after respectively mentioned (in this Act referred to as "the prescribed period") (that is to say):—

Repayment
of borrowed
money.

As regards moneys borrowed for the purpose (1) mentioned in the section of this Act whereof the marginal note is "Power to borrow" forty years from the date or dates of borrowing the same:

As regards moneys borrowed for the purposes (2) and (3) in the said section thirty years from the date or dates of borrowing the same:

As regards moneys borrowed for the purpose (4) in the said section five years from the passing of this Act.

34. The Council shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Mode of
payment off
of money
borrowed.

35.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

Sinking
fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum

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per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto

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in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

36.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is

Return
respecting
sinking fund
to Local

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Government
Board.

required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to re-
borrow.

37. The Council may except as herein-after provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any

A.D. 1905.
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moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

38.—(1) The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way or partly in another.

Power to
borrow under
Local Loans
Act 1875.

(2) Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same funds rates and revenues as they would be charged upon and paid out of if raised by mortgage under this Act and such funds rates and revenues shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

(3) Every such loan shall be discharged within the prescribed period.

(4) The section of this Act of which the marginal note is "Sinking fund" shall apply to any sinking fund provided by the Council for the repayment of any moneys borrowed by them under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act.

39. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Application
of money
borrowed.

40. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to

Council not
to regard
trusts.

A.D. 1905. — which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Expenses of
Act.

41. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with complying with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of any of their rates or funds and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

The SCHEDULES referred to in the foregoing Act.

A.D. 1905.

FIRST SCHEDULE.

PREMISES OF WHICH PORTIONS ONLY MAY BE TAKEN.

District or Parish.	Numbers on deposited Plans.
Parish and urban district of Aberdare -	5A 5B 6 8 20 33 36 to 43 69 to 76 109 to 132 175 202 203 220A 221A 224A 225A 226A 227A 228A 229A 230A 231A 232A 233A 234A 235A 236A 237A 238A 241A to 241v 244 to 253 257 and 315.

SECOND SCHEDULE.

LANDS FOR REFUSE DESTROYER.

A piece of land and occupation road containing one acre and three-quarters or thereabouts situate in the parish of Aberdare on the north-east side of Gadlys Road forming part of the Old Gadlys Ironworks and Coke Yards and comprising parts of the inclosure and buildings thereon numbered 551 on the Ordnance map of the said parish (scale $\frac{1}{2500}$) published in 1868.

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